

Smt. Reeta Ojha v. State of U.P. & Ors.

Allahabad High Court · Division Bench · 4 July 2022 · Writ-C No. 12417 of 2022 · WRIT - C No. 12417 of 2022 · **Writ disposed of; petitioner relegated to clause 6.5 objection; coercive action stayed eight weeks.**

HEADNOTE

Writ seeking quashing of a recovery citation and electricity bill, and restoration of disconnected supply, was disposed of without a merits finding. The High Court granted liberty to file an objection under para 6.5 of the U.P. Electricity Supply Code, 2005, to be decided after hearing, and stayed coercive action on the demand for a limited period.

FACTUAL SUMMARY

Smt. Reeta Ojha challenged a citation notice dated 9 August 2021 for Rs. 11,44,597 and a bill dated 13 March 2022 for Rs. 13,21,461, and sought restoration of supply disconnected on 15 March 2022. She also asked that her application dated 30 March 2022 be decided. Counsel for the distribution company stated that she could file an objection to the demand, which would be decided within a fixed time.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause-6.5-alternate-remedy

HOLDING

Without expressing any opinion on merits, a writ challenging a recovery citation and electricity bill, and seeking reconnection, is disposed of by granting liberty to file an objection under para 6.5 of the U.P. Electricity Supply Code, 2005, to be decided in accordance with law after hearing, with coercive action on the demand stayed for a short period pending that process. ¶ 4-5

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court declined to examine the citation, bill, or disconnection on merits and relegated the petitioner to a para 6.5 objection before the distribution-company respondent. ¶ 4

clause-6.5-statutory-remedy-disputed-bill The disputed demand of Rs. 11,44,597 / Rs. 13,21,461 was left to be decided on a para 6.5 objection, with a time-bound hearing and a limited stay of coercive recovery. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE CITATION NOTICE DATED 09.08.2021, THE BILL DATED 13.03.2022, AND THE LEGALITY OF DISCONNECTION ON 15.03.2022

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 4